

Girish Babu Alias Girish Kumar v. State of U.P.

Allahabad High Court · Division Bench · 19 August 2019 · WRIT - C No. 25308 of 2019 · **Writ dismissed with liberty to seek instalments under clause 6.14.**

HEADNOTE

On a writ challenging a recovery citation for electricity arrears, where the consumer only asked the Court to fix instalments, the Division Bench dismissed the petition with liberty to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005 to the Executive Engineer, who was to consider the representation.

FACTUAL SUMMARY

Girish Babu alias Girish Kumar filed a writ petition in the Allahabad High Court challenging a recovery citation dated 18 June 2019 whereby Rs.7,57,911 plus interest was demanded from him as electricity dues. He approached the Court against the State of Uttar Pradesh and three others. Counsel did not press a merits challenge to the citation and submitted that the petitioner was ready and willing to pay the entire amount provided some instalments were fixed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity arrears

HOLDING

A consumer who seeks to pay electricity arrears in instalments must prefer a representation under clause 6.14 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer; the High Court will not itself fix instalments on a writ challenging the recovery citation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 18.6.2019 AND THE UNDERLYING ELECTRICITY DUES

The petition was dismissed with liberty to apply under clause 6.14; the Court did not examine the citation on merits. ¶ 1